

Amendment No. 1 to SB0933

White
Signature of Sponsor

AMEND Senate Bill No. 933

House Bill No. 919*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-8-201(a)(1), is amended by deleting "nineteen (19) members" and substituting "twenty-one (21) members".

SECTION 2. Tennessee Code Annotated, Section 49-8-201(a)(3), is amended by deleting subdivision (A) and substituting:

(A)

(i) Twelve (12) public members shall be appointed by the governor, one (1) of whom shall be from each congressional district, and three (3) at-large who may be residents or non-residents of this state.

(ii) Beginning on the effective date of this act:

(a) The governor shall appoint ten (10) public members, one (1) of whom must be from each congressional district, and one (1) at-large member who may be a resident or non-resident of this state;

(b) The speaker of the senate shall appoint two (2) at-large public members who may be residents or non-residents of this state, one (1) of whom must be appointed on or after the effective date of this act, and one (1) of whom must be appointed as the successor to the first at-large public member appointed by the governor pursuant to subdivision (a)(3)(A)(i), whose term expires on or after the effective date of this act; and

(c) The speaker of the house of representatives shall appoint two (2) at-large public members who may be residents or non-residents of this state, one (1) of whom must be appointed on or after the effective date of this act, and one (1) of whom must be appointed as the successor to the second at-large public member appointed by the governor pursuant to subdivision (a)(3)(A)(i), whose term expires on or after the effective date of this act.

SECTION 3. Tennessee Code Annotated, Section 49-8-201(a), is amended by deleting subdivision (10) and by deleting subdivisions (4) and (5) and substituting:

(4)

(A) The initial terms of the first at-large members appointed by the governor pursuant to subdivision (a)(3)(A)(i) shall be two (2), four (4), and six (6) years, with the terms of the remaining initial eight (8) members to be one (1), two (2), three (3), four (4), five (5), six (6), seven (7), and eight (8) years.

(B) Beginning on the effective date of this act, the initial terms of the first at-large members appointed by the speaker of the senate and the speaker of the house of representatives pursuant to subdivision (a)(3)(A)(ii) shall be six (6) years.

(C) For all subsequent appointments, members appointed pursuant to subdivision (a)(3)(A) shall be appointed for six-year terms.

(5) The members appointed by the governor, except for the faculty members appointed by the governor pursuant to subdivision (a)(3)(D) and the student member appointed by the governor pursuant to subsection (b), are subject to confirmation by the senate, but appointments are effective until adversely acted upon by the senate.

SECTION 4. Tennessee Code Annotated, Section 49-8-201(f)(1), is amended by deleting subdivisions (A) and (B) and substituting:

(A)

(i) Each state university board consists of twelve (12) members, of which eleven (11) members shall be voting members and one (1) member shall be a nonvoting member. The nonvoting member shall be a student representative.

(ii) Of the eleven (11) voting members, at least eight (8) members shall be residents of this state or nonresidents who have significantly contributed their time and support to ensure the success and continued growth of the state university or the local community served by the state university.

(B)

(i) Eight (8) of the voting state university board members shall be appointed by the governor.

(ii) Beginning on the effective date of this act:

(a) Six (6) of the voting state university board members shall be appointed by the governor;

(b) Two (2) of the voting state university board members shall be appointed by the speaker of the senate, one (1) of whom shall be appointed on or after the effective date of this act, and one (1) of whom shall be appointed as the successor to the first voting member appointed by the governor pursuant to subdivision (f)(1)(B)(i), whose term expires on or after the effective date of this act; and

(c) Two (2) of the voting state university board members shall be appointed by the speaker of the house of representatives, one (1) of whom shall be appointed on or after the effective date of this act, and one (1) of whom shall be appointed as the successor to the second voting member appointed by the governor pursuant to subdivision (f)(1)(B)(i), whose term expires on or after the effective date of this act.

SECTION 5. Tennessee Code Annotated, Section 49-8-201(f)(2), is amended by deleting subdivision (A) and substituting:

(A)

(i) The initial terms of the members appointed by the governor to a state university board pursuant to subdivision (f)(1)(B)(i) shall be three (3), four (4) and six (6) years. Three (3) members shall serve a three-year term; three (3) members shall serve a four-year term; and two (2) members shall serve a six-year term.

(ii) Beginning on the effective date of this act, the initial terms of the first members appointed by the speaker of the senate and the speaker of the house of representatives pursuant to subdivision (f)(1)(B)(ii) shall be six (6) years.

(iii) For all subsequent appointments, members appointed by the governor, the speaker of the senate, or the speaker of the house of representatives pursuant to subdivision (f)(1) shall be appointed for six-year terms.

SECTION 6. Tennessee Code Annotated, Section 49-8-201(f), is amended by deleting "eight (8)" in subdivision (3) and by deleting subdivision (4) and substituting:

(4) State university board members appointed by the governor, the speaker of the senate, or the speaker of the house of representatives shall be eligible to serve for two (2) consecutive six-year terms. A member who serves two (2) consecutive six-year terms on a state university board may be reappointed after at least four (4) years have elapsed since the member's last date of service.

SECTION 7. Tennessee Code Annotated, Section 49-8-201(f)(9), is amended by deleting "ten (10) members" and substituting "twelve (12) members" in subdivision (A)(i) and by deleting subdivision (D)(i) and substituting instead the following:

(i) The members appointed by the governor, the speaker of the senate, and the speaker of the house of representatives to serve on the state university board for Tennessee State University shall attend orientation seminars coordinated and administered by the commission as provided in subdivision (f)(7)(A); and

SECTION 8. Tennessee Code Annotated, Section 49-9-202(a), is amended by deleting subdivision (1) and substituting:

(1)

(A) As of July 1, 2018, the existing membership of the board of trustees of the University of Tennessee is vacated and reconstituted to consist of one (1) ex officio voting member, who shall be the commissioner of agriculture; ten (10) voting members appointed by the governor; and one (1) nonvoting student member appointed pursuant to subdivision (a)(3).

(B) Beginning on the effective date of this act, the board of trustees of the University of Tennessee consists of the following fourteen (14) members:

(i) The commissioner of agriculture, who is an ex officio voting member;

(ii) One (1) nonvoting student member appointed pursuant to subdivision (a)(3);

(iii) Eight (8) voting members appointed by the governor;

(iv) Two (2) voting members appointed by the speaker of the senate, one (1) of whom must be appointed on or after the effective date of this act, and one (1) of whom must be appointed as the successor to the first voting member appointed by the governor pursuant to subdivision (a)(1)(A) whose term expires June 30, 2026; and

(v) Two (2) voting members appointed by the speaker of the house of representatives, one (1) of whom must be appointed on or after the effective date of this act, and one (1) of whom must be appointed as the successor to the second voting member appointed by the governor pursuant to subdivision (a)(1)(A) whose term expires June 30, 2026.

SECTION 9. Tennessee Code Annotated, Section 49-9-202(a)(2), is amended by deleting subdivisions (A)-(C) and substituting:

(A) The governor shall appoint at least two (2) residents of each grand division. For purposes of this subdivision (a)(2)(A), "resident" means a person whose legal domicile is in the grand division from which appointed.

(B) At least four (4) of the members appointed by the governor must be alumni of the University of Tennessee. For purposes of this subdivision (a)(2)(B), "alumni" means a person who earned a degree at an institution of the University of Tennessee. In making appointments, the governor, the speaker of the senate, and the speaker of the house of representatives shall strive to ensure that the board includes alumni from different University of Tennessee institutions.

(C) At least six (6) of the members appointed must be residents of this state. For purposes of this subdivision (a)(2)(C), "resident" means a person whose legal domicile is the state of Tennessee.

SECTION 10. Tennessee Code Annotated, Section 49-9-202(c)(1)(A), is amended by deleting "ten (10)".

SECTION 11. Tennessee Code Annotated, Section 49-9-203, is amended by deleting the section and substituting:

(a) As of July 1, 2018, the initial terms of the members of the board of trustees of the University of Tennessee appointed by the governor pursuant to § 49-9-202(a)(1)(A) shall be two (2), four (4), and six (6) years. Three (3) members shall be appointed to serve a two-year term; four (4) members shall be appointed to serve a four-year term; and three (3) members shall be appointed to serve a six-year term.

(b) Beginning on the effective date of this act, the initial terms of the first members of the board of trustees appointed by the speaker of the senate and the speaker of the house of representatives pursuant to § 49-9-202(a)(1)(B) begin on the date of appointment and end on June 30, 2030.

(c) For all subsequent appointments, members of the board of trustees appointed pursuant to § 49-9-202(a) shall be appointed to serve a term of six (6) years beginning July 1 of the year of appointment and ending on June 30.

(d) Members of the board of trustees appointed by the governor, the speaker of the senate, or the speaker of the house of representatives pursuant to § 49-9-202(a) may succeed themselves; provided, that no person may serve more than two (2) consecutive terms, whether appointed as an initial member, a successor member, or to fill a vacancy. A member who serves two (2) consecutive terms may be reappointed after four (4) years have elapsed since the individual's last date of service on the board.

SECTION 12. Tennessee Code Annotated, Section 49-9-204, is amended by deleting the section and substituting:

(a) If a vacancy on the board of trustees of the University of Tennessee occurs by death or resignation of an appointed member, then the respective appointing authority shall appoint a successor for the remainder of the term, subject to § 49-9-202(c), if applicable. If a vacancy occurs by reason of expiration of a term, then the member whose term has expired shall serve until a successor is appointed and, if applicable, confirmed.

(b) The cessation of a member's legal domicile in the grand division that the member represents pursuant to § 49-9-202(a)(2)(A), or the cessation of a member's legal domicile in the state that results in a failure to satisfy § 49-9-202(a)(2)(C), vacates the member's position. The respective appointing authority shall appoint a person who satisfies the requirement as a successor for the remainder of the term, subject to § 49-9-202(c), if applicable.

(c) The failure of a member to attend more than fifty percent (50%) of the regular meetings in a calendar year shall be cause for the member's removal and shall authorize the board to call on the respective appointing authority to appoint a successor; provided, that this requirement does not apply to an ex officio member.

SECTION 13. This act takes effect upon becoming a law, the public welfare requiring it.